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June 9, 2008

Dr. Martin Atkinson-Barr
26038 Edenpark Drive
Calabasas, CA 91302

Re: Martin Atkinson-Barr v. City of Calabasas, et al.
Our File No. : 5820.163

Dear Dr. Atkinson-Barr:

Receipt of your letters to this office dated May 30, 2008, and to Mr. Michael Colantuono dated May 29, 2008, is acknowledged.

After reading all of the correspondence in this matter and coming to this with a more objective eye than those previously engaged, I can only come to one conclusion: You have too much time on your hands.

Despite the fact that we have explained these points over and over to you, apparently we are not getting through. I will, as such, reiterate them as follows:

1. You did not receive the settlement amount because you failed to execute a standard release and the former was contingent on the latter;

2. The release you provided was not the standard release according to Matthew Bender; it was revised by you to intentionally delete reference to C.C.P. § 1542. You did this willingly and knowingly despite agreeing otherwise in open court that you would do so.

3. Your analogy in the fourth paragraph of your letter to me is nonsensical and illogical and has no application to the issue herein.

Furthermore, if you bring your so-called "felony contempt of court" action, you must first have an order stating that my client is in contempt My review of the file indicates that no such order exists. Please provide me with any documentation that such an order exists. If not, I would strongly discourage you from making idyl, childish threats that have no basis in law or fact.

Be advised that if you bring an action for contempt (or based on any other legal theory for that matter), then, to the extent that we prove that the action was meritless and frivolous, we reserve the right to pursue a malicious prosecution action against you, which, if successful would entitle us to attorneys' fees. We may also try to have the Court designate you as a vexation litigant under the statute.

The time has come to put an end to your obstinacy and pursue other, more meaningful, endeavors than that which seeks to prevent young children from engaging in a recreational activity such as baseball, because one unreasonable and obstinate individual places his own personal agenda ahead of others who are more well deserving.

We await receipt of the executed release containing the § 1542 language.

Very truly yours,

POLLAK, VIDA & FISHER

ROBERT J. LENT

RJL:js
cc: Michael Colantuono, Calabasas City Attorney
Dwight Kunz
Tony Coroalles, Calabasas City Manager

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